

**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 23-08**

**MEDITERRANEAN SHIPPING COMPANY, S.A. - POSSIBLE VIOLATIONS OF THE  
SHIPPING ACT, 46 U.S.C. §§ 41102(c), 40501, AND 41104(a)(2)(A)**

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**BUREAU OF ENFORCEMENT, INVESTIGATIONS, AND COMPLIANCE REPLY TO  
RESPONDENT'S EXCEPTIONS TO INITIAL DECISION**

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April 10, 2025

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## **I. INTRODUCTION**

The Mediterranean Shipping Company, S.A. (MSC or Respondent) is the biggest ocean common carrier in the foreign commerce of the United States.<sup>1</sup> This has been asserted multiple times in this proceeding, but it bears repeating because MSC is a seasoned vessel-operating common carrier (VOCC) who should know the basic tenets of holding itself out to the general public to provide transportation by water between the United States and foreign countries for compensation. See 46 U.S.C. § 40102(7). One of these most basic tenets is tariff publication. Publicizing the rates by which a VOCC ultimately charges a consumer is vital to ensuring a competitive and reliable international ocean transportation supply system. It allows the public to make an informed decision to patron a VOCC and allows the public to hold VOCCs accountable to the rates charged. MSC's flagrant disregard for this obligation speaks to the importance of this proceeding.

On February 25, 2025, the ALJ correctly found that MSC violated the Shipping Act, as amended, at 46 U.S.C. § 40501 by failing to publish its detention and demurrage (D&D) rate for non-operating reefers (NORs). See Initial Decision (In'l Dec.), Docket No. 23-08, Mediterranean Shipping Company, S.A.—Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A) (ALJ Feb. 25, 2025). On March 19, 2025, MSC filed its exceptions with the Federal Maritime Commission (FMC or Commission), pursuant to 46 C.F.R. § 502.227(a)(1). See Respondent Mediterranean Shipping Company, S.A.'s Exceptions to Initial Decision (MSC Exceptions), Docket No. 23-08, Mediterranean Shipping Company, S.A.—

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<sup>1</sup> MSC is privately owned with an estimated annual revenue of \$91.1 billion and total profit of \$38.2 billion. See Italian Media Reports MSC Profit at USD 38 Billion in 2022, Full Avante News FAN (Oct. 18, 2023) <https://fullavantenews.com/italian-media-reports-msc-profit-at-usd-38-billion-in-2022/>.

Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A).<sup>2</sup>

MSC objected to the ALJ's findings that MSC violated Section 40501, protested the assessed civil penalty of \$20,000 per each Section 40501 violation, and claimed that such civil penalty is unconstitutional. See MSC Exceptions at 3–17. MSC repeated some of its arguments from briefing, cited outdated and irrelevant case law, and relied on a dubious declaration. See id. at 3–4; see generally Reply Br. of Resp. MSC Mediterranean Shipping Company, S.A. (MSC Br.), Docket No. 23-08, Mediterranean Shipping Company, S.A.—Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A) (May 3, 2024). These claims could not go unaddressed, therefore pursuant to 46 C.F.R. § 502.227(a)(2), BEIC now files this reply to the MSC Exceptions.

#### **A. APPLICABLE LEGAL STANDARD**

When reviewing exceptions to an ALJ's Initial Decision, the Commission has “all the powers which it would have in making the initial decision.” 46 C.F.R. § 502.227(a)(6). Therefore, the Commission should review this Initial Decision de novo and may make additional findings as is supported by the record below. Id.; see also Maher Terminals, LLC v. Port Auth. of N.Y. & N.J., 12-02, 2015 WL 9426189, at\*5 (Fed Mar. Comm'n Dec. 18, 2015). Orders by the Commission must consider the whole record and be supported by reliable, probative, and substantive evidence. 5 U.S.C. § 556(d).

#### **B. RELEVANT PROCEDURAL HISTORY**

The Commission initiated this proceeding by issuing an Order of Investigation and Hearing

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<sup>2</sup> The Office of Enforcement (OE), within the Bureau of Enforcement, Investigations, and Compliance (BEIC), also filed its exceptions on March 19, 2025. See Bureau of Enforcement, Investigations, and Compliance Exceptions to Initial Decision (BEIC Exceptions), Docket No. 23-08, Mediterranean Shipping Company, S.A.—Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A) (ALJ Feb. 25, 2025)

on August 10, 2023. See Order of Investigation and Hearing (OIH), Docket No. 23-08, Mediterranean Shipping Company, S.A.—Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501 and 41104(a)(2)(A) (FMC August 10, 2023). The ALJ ordered discovery to end on February 2, 2024. Scheduling Order, FMC Docket No. 23-08, Mediterranean Shipping Company, S.A.—Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501 and 41104(a)(2)(A) (ALJ October 2, 2023).

Mr. Marco Sidoti, the Nationwide Demurrage/ Detention/ Perdiem Director at MSC USA, submitted a declaration for this proceeding on February 2, 2024. See In'l Dec. at 20, FOF 93; see also OE App. MSC Production 505. BEIC/OE filed its Opening Brief on April 3, 2024. See Opening Br. Bureau of Enforcement, Investigations, and Compliance (BEIC Br.), Docket No. 23-08, Mediterranean Shipping Company, S.A.—Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A) (April 3, 2024). MSC filed its Response Brief on May 3, 2024. See Reply Br. of Resp. MSC Mediterranean Shipping Company, S.A. (Resp. Br.), Docket No. 23-08, Mediterranean Shipping Company, S.A.—Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A) (May 3, 2024). BEIC/OE then filed its Reply Brief on May 20, 2024. See Reply Br. Bureau of Enforcement, Investigations, and Compliance (BEIC Reply), Docket No. 23-08, Mediterranean Shipping Company, S.A.—Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A) (May 20, 2024).

### **C. RELEVANT FINDINGS OF FACT**

In 2021, MSC's U.S. tariff contained "demurrage, detention, and per diem charges [collectively 'D&D charge' or 'D&D rates'] for reefer containers and dry containers." In'l Dec. at 19, FOF 84. MSC's U.S. tariff did not contain separate D&D rates for non-operating reefers (NORs) (refrigerated containers that are not operating as refrigerated containers and are effectively

dry containers.) Id., FOF 85. But in certain other countries, MSC did publish separate D&D rates that distinguished between NORs and reefers. Id., FOF 86.

Ultimately, MSC incorrectly imposed the operating reefer D&D rate to 2,629 NORs. Id. at 21, FOF 99. This caused 2,629 NORs to be granted less free days and charged a higher daily D&D rate. Id. at 19, FOF 87. When asked about this in 2022, MSC responded that its “default policy of applying DRY D&D rates to NOR units [was] not at the moment explicitly laid down in [its] tariff” but that it was “their intention to modify [their] tariff entry.” Id. at 19–20, FOF 92. But it was not until March 9, 2023, that MSC finally published separate D&D rates for NORs. Id. at 22, FOF 106.

## **II. ARGUMENT**

### **A. GENERAL RATE AND TARIFF REQUIREMENTS**

Section 40501 of the Shipping Act provides that common carriers, of which MSC is one, must publish their tariffs for “public inspection” and that those tariffs must “state separately each terminal or other charge, privilege, or facility under the control of the carrier or conference and any rules that in any way change, affect, or determine any part of the total of the rates or charges.” 46 U.S.C. § 40501(a)(1), (b)(4). This has been unchanged since October 6, 2006. PRESIDENT BUSH SIGNS H.R. 1036, H.R. 1442, H.R. 5074, H.R. 5187, AND H.R. 5574, 2006 WL 2848032, at \*1 (memorializing the President’s codification of Title 46 of the United States Code).

MSC did not publish a separate D&D rate for NORs, even though Section 40501 obligated MSC to do so. In’l Dec. at 39–40. So, from at least January 1, 2021, and “up to and including March 9, 2023, MSC acted in contravention of 46 U.S.C. § 40501,” and accumulated seven hundred and ninety-eight (798) separate violations because it did not publish a separate D&D rate for NORs. Id. Section 40501 violations are strict liability violations with no “regard to intent.”

Marcella Shipping Co. Ltd. (Marcella), 28 F.M.C. 259, 266 (ALJ 1986); see also Cari Cargo International, Inc. Jorge Villena and Sea Trade Shipping (Cari Cargo), 28 F.M.C. 395, 410 (ALJ 1986) (discussing how a VOCC “can violate [Section 40501] merely by operating without a tariff and by not adhering to its tariff regardless of its knowledge or reasons because these laws are ‘absolute liability statutes.’”). The failure to file an accurate tariff is a violation in and of itself.

MSC attempts to obfuscate the issue in its exceptions and ignores the Shipping Act’s tariff filing obligations and well-established precedent. See MSC Exception at 3–5. MSC cites case law prior to Section 40501’s enactment and discusses immaterial dicta to avoid addressing the simplicity of the issue, which is a binary question of whether MSC published a NOR D&D rate or not; they did not. MSC Exceptions at 3–5. Rather than address the issue, MSC attempts to minimize the harms of its 798 violations. Id. at 5–13.

But prior case law poignantly details why MSC’s 798 violations are egregious. In Cari Cargo, a respondent likewise operated without a tariff and the ALJ opined that:

Perhaps nothing is more important to effective protection of the shipping public and industry than the requirement that carriers file their tariffs and adhere to them strictly . . . . The enforcement of these laws goes to the very heart of the Commission’s responsibilities, and the Commission and courts have long recognized the extreme importance of these laws . . . .

The purpose of requiring the submission of tariff schedules [under Section 40501] is to secure uniformity and equality of treatment in rates and services to all shippers. The requirement of the act that all rates should be published is perhaps the chief feature of the scheme provided for the effective outlawing of all discriminations. If this portion of the act is not strictly enforced, the entire basis of effective regulation will be lost . . . .

So important is the requirement that common carriers must file their tariffs and strictly adhere to them that the courts have long held that tariffs have the force and effect of law and that departure from them is not permitted even if hardship results in some cases or the carrier intended no harm . . . . Therefore [Section 40501 is] violated even if the carrier acted without fault.

28 F.M.C. at 406–407 (citations omitted).

By not publishing its NOR D&D rate, MSC failed to uniformly and equally charge NORs. MSC imported 20,121 NOR containers in 2021 and 11,480 of these containers were charged D&D. In'l Dec. at 19, FOF 88–89. While the majority of those containers were treated as dry containers and received the dry container allotment of free time, 2,629 of those NORs were charged operating reefer rates and allotted operating reefer free time. *Id.* at 21, FOF 99. This disparate treatment is the reason why Section 40501 is a strict liability violation.

MSC attempts to obscure the issues, but its failure to publish NOR D&D rates is different than its 2,629 NOR overcharges. *See* In'l Dec. at 39–40. MSC's supposed mistake or negligence has no bearing on whether it violated Section 40501. *See* MSC Exceptions at 3. MSC violated Section 40501 by not publishing its NOR D&D rate. The resulting consequence of MSC's Section 40501 violation was MSC's inequitable application of NOR D&D rates.

## **B. CIVIL PENALTY**

MSC violated Section 40501, and pursuant to 46 U.S.C. § 41107(a), MSC is liable for a civil penalty that “may not exceed [\$14,988] for each violation or, if the violation was willfully and knowingly committed, [\$74,943] for each violation.”<sup>3</sup> 46 U.S.C. § 41107(a). And “[e]ach day of a continuing violation is a separate violation.” *Id.* Thus, MSC committed 798 violations because it violated Section 40501 between at least January 1, 2021, to March 9, 2023, and should be charged from \$14,989 to \$74,943 per violation for knowingly and willfully violating Section 40501.

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<sup>3</sup> In Section 41107(a), Congress provided a \$5,000 maximum penalty amount for violations of the Shipping Act, a Commission regulation, or a Commission order. 46 U.S.C. § 41107(a). When adjusted for inflation, this current amount is \$14,988. Part 506—Civil Monetary Penalty Inflation Adjustment (2025 Inflation Adjustment), 90 Fed. Reg. 3040 (Fed. Mar. Comm'n Jan. 14, 2025). The maximum penalty for a violation knowingly and willfully committed is \$25,000—or currently \$74,943 as adjusted for inflation. 46 U.S.C. § 41107(a); 2025 Inflation Adjustment, 90 Fed. Reg. 3040.

The criteria for assessing a civil penalty is established by 46 U.S.C. § 41109(b)(1)(A)–(B) and 46 C.F.R. § 502.603(b). The Commission must consider:

- i) The nature, circumstances, extent, and gravity of the violation committed;
- ii) With respect to the violator:
  - (A) The degree of culpability;
  - (B) Any history of prior offenses;
  - (C) The ability to pay; and
  - (D) Such other matters as justice may require . . . .

46 C.F.R. § 502.603(b); see also 46 U.S.C. § 41109(b)(1)(A)–(B).

The Initial Decision assessed a civil penalty of \$20,000 per Section 40501 violation due to its knowing and willful nature. In'l Dec. at 49. MSC takes exception with this civil penalty but does not consider the above factors. MSC Exceptions 5–13. Instead, MSC protests the amount as arbitrary and capricious, id. at 5–7, while creating its own arbitrary standards of civil penalties based on the “three distinct sub-periods” that it violated Section 40501 in 2021 through 2023. Id. at 8. MSC invokes irrelevant mitigating factors (as MSC continues to obfuscate the issues of its 2,629 NOR overcharges with its 798 NOR Section 40501 violations), id. at 11–12, and attempts to minimize the harms of its Section 40501 violations.

First, the civil penalty is not arbitrary and capricious. BEIC already addressed this issue in its briefing, see BEIC Reply at 33–42, and the Initial Decision duly considered the issue and assessed sound civil penalties. In'l Dec. at 49. The amount proposed is not arbitrary and capricious just because MSC does not want to be liable for violating the Shipping Act. Congress considered these amounts, and the nature, circumstances, extent, and gravity of these violations warrant the assessed civil penalty. See generally Merritt v. United States, 960 F.2d 15, 17 (2d Cir. 1992).

Secondly, the sub-period civil penalty proposal is arbitrary to the nature, circumstances, extent, and gravity of MSC's Section 40501 violations. The distinction between each temporal

sub-period revolves around MSC's NOR overcharge violations, not the strict liability issue of MSC's publishing its NOR D&D rate. Section 40501 is a strict liability provision; intent is only a relevant factor when considering penalties. Marcella at 266. MSC's proposal does not address why a sophisticated company like MSC would not publish a NOR D&D rate in the U.S. for over two years while simultaneously publishing a NOR D&D rate in other countries. MSC attempts to obscure the binary nature of a Section 40501 violation by pointing to MSC's billing system's failures. MSC Exceptions at 9–10. That is not relevant to a strict liability offense such as this one. Therefore, MSC's invented proposal about sub-periods should be rejected.

Third, MSC offers irrelevant mitigating factors to its Section 40501 violations. Refunding NOR overcharges, cooperating with an FMC audit<sup>4</sup>, COVID-19 difficulties, and prior negotiations do not speak to why MSC would not publish NOR D&D rates from January 1, 2021, to March 9, 2023. Therefore, the Commission should not consider any of MSC's mitigating factors when assessing the civil penalties for MSC's Section 40501 violations.

Finally, the nature of this violation is grave. Tariff publication is the “heart of the Commission's responsibilities,” and MSC had actual knowledge of its duty to publish these rates. Cari Cargo, 28 F.M.C. at 406. The fact that it did not publish these rates for over two years, even after attesting to the FMC that it would, speaks to the flagrant disregard MSC holds for complying with the Shipping Act. In'l Dec. at 19–20, FOF 92. Thus, the Commission should assess MSC's 798 Section 40501 violations accordingly.

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<sup>4</sup> MSC argues that it was not lawfully required to respond to an FMC audit, MSC Exceptions at 12, but MSC ignores the statutory authority granted to the Commission to investigate potential violations of the Shipping Act. See 46 U.S.C. §§ 40101–41310.

### C. SIDOTI DECLARATION

In MSC's many attempts to obfuscate the issue, MSC claims that its NOR overcharges are related to its Section 40501 violations. See MSC Exceptions at 3–13. MSC relies heavily on Mr. Sidoti's declaration, which was submitted on February 2, 2024, the last day of discovery. So, the Commission should weigh this declaration appropriately.

Mr. Sidoti's declaration conveniently explained MSC's failure to publish its tariff. See Affidavit of Marco Sidoti (Sidoti Affidavit), OE App. MSC Prod. 504–508. Shockingly, the last-minute disclosure was complete with charts, dates and data explaining the source of its invoicing errors. Id. Within the Sidoti Affidavit is a weak claim that an internal billing mistake is the reason for MSC's NOR overcharges—which is again unrelated to MSC's failure to publish the NOR D&D rate. Id.; see also In'l Dec. at 21–22, FOF100–105. Yet in the Sidoti Affidavit and MSC's Exceptions, MSC attempts to explain MSC's failure to publish with its own internal billing issues. See OE App. MSC Prod. at 505; see also MSC Exceptions at 3.

For example, in MSC tried to avoid responsibility for not publishing by claiming that:

[A]lthough some individuals at MSC may have been unclear about MSC's policy with respect to the treatment of DDP charges for NORs, there was no reason Mr. Sidoti or anyone else in senior management at MSC (all of whom were clear on the policy) knew or should have suspected that the tariff was potentially ambiguous.

MSC Exceptions at 9. This statement makes no sense. MSC's internal billing system failure has no bearing on its legal duty to publish an accurate tariff.

Furthermore, from the evidence provided, the conclusion must be that MSC did not exercise due diligence in correcting its billing error. In'l Dec. at 21–22, FOF 100–105. In his affidavit, Mr. Sidoti swore that “[t]he described error which caused the application of reefer charges to NORs came to his attention on or about September 2, 2021, was corrected on or about

September 16, 2021, and has not been an issue since.” Id. at 21, FOF 103. However, not mentioned in the Sidoti Affidavit are the 2,629 NOR billing mistakes and MSC’s failure to address 925 customer complaints in the previous nine months. Id., FOF 97. In other words, MSC is arguing its negligence as an excuse for its strict liability failure to publish a NOR/dry box tariff.

The impact of MSC’s omission should not be underestimated or tolerated. MSC’s lack of candor within the discovery process impacted the ALJ’s analysis, causing the ALJ to incorrectly hold that there was “no factual basis from which to conclude that the billing of NORs as reefers was the result of anything other than a mistake, as MSC contends – it was not a ‘practice’ under § 41102(c).” In’l Dec. at 41. However, nowhere in MSC’s filings or 7,000 pages of discovery production is there any mention of “the absence of the ‘Yes/No’ flag due to a clerical error.” Nowhere is there mention of a clerical error to cause a flag to be overwritten with a blank entry during a tariff update in MSC’s internal tariff recording system or an inadvertent action by a clerk copying and pasting new tariff conditions for multiple terminal locations or accidentally removing the “Yes” flag. Nowhere is there an explanation that this billing error occurred in the general tariff, and that the issue did not affect shipments under service contracts. Other than the Sidoti Affidavit, there is no disclosure or explanation in MSC’s discovery about finding any internal billing error in September 2021 or about MSC promptly correcting the issue by manually reinstating the flag in MSC’s internal tariff recording system.

MSC emphasizes an alleged billing error or mistake in its billing system, however, this is nothing but a last-minute attempt to mislead the Commission. Logically, if an internal billing issue is the cause for its failure, one would expect MSC to declare at the start of these proceedings such reasons or excuses, rather than on the last day discovery was open. For what it is worth, the Sidoti Affidavit amounts to nothing more than an excuse for MSC’s unlawful billing practices and its

failure to publish a tariff in accordance with Section 40501 of the Shipping Act. MSC's last minute disclosure of its alleged action to correct the NOR billing issue demonstrates a lack of candor in this proceeding. If the Sidoti Affidavit is to be given any credibility, then from the first day of the Commission's investigation on February 8, 2022 to the day discovery closed on February 2, 2024, MSC withheld information related to its NOR billing issue for a span of nearly two years. In'l Dec. at 19, FOF 91. Thus, the Commission should give the Sidoti Affidavit its due weight.

#### **D. THE CIVIL PENALTY IS CONSTITUTIONAL**

The ALJ acknowledged MSC's filing of supplemental authority but declined to address the issue. In'l Dec. at 23. Accordingly, MSC filed its constitutional arguments in its exceptions to preserve "review by the U.S. Court of Appeals." MSC Exceptions at 13, n9. MSC contends that the ALJ's finding of Section 40501 violation is unconstitutional and must be assessed by an Article III Court<sup>5</sup> and that the ALJ lacks the authority to impose any civil penalty. As MSC is arguing to invalidate the very statute that enumerates the Commission's jurisdiction, BEIC defers argument on this question because the constitutionality of Congressional enactments is generally considered beyond the jurisdiction of this sort of proceeding and BEIC's delegated powers under 46 C.F.R. §§ 502.63 and 501.3(f)(ix). See Motor & Equip. Mfrs. Ass'n, Inc. v. E.P.A., 627 F.2d 1095, 1115 (D.C. Cir. 1979) (citing Weinberger v. Salfi, 422 U.S. 749, 765 (1975)).

BEIC notes that the FMC's purpose is to:

- (1) establish a nondiscriminatory regulatory process for the common carriage of goods by water in the foreign commerce of the United States with a minimum of government intervention and regulatory costs;
- (2) ensure an efficient, competitive, and economical transportation system in the ocean commerce of the United States;
- (3) encourage the development of an economically sound and efficient liner

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<sup>5</sup> Notably, MSC does not invoke its Section 41102(c) violation or penalty. MSC Exceptions 13–15; see also In'l Dec. at 49.

fleet of vessels of the United States capable of meeting national security needs and supporting commerce; and

(4) promote the growth and development of united states exports through a competitive and efficient system for the carriage of goods by water in the foreign commerce of the united states, and by placing a greater reliance on the marketplace.

46 U.S.C. § 40101.

MSC did not raise any arguments before the ALJ regarding the Commission's jurisdiction or enumerated power to issue orders or civil penalties relating to violations of the Shipping Act. MSC Exceptions at 13–17; see also MSC Br., BEIC Br. at 40. MSC's main contention is that the assessment of civil penalties is unconstitutional. MSC Exceptions at 13–17.

BEIC further notes that MSC did not establish that this proceeding is a matter of common law. MSC Exceptions at 14. Claiming that this proceeding is a matter of common law does not make it so, as admiralty and maritime proceedings are generally in contrast to common law. See Securities and Exchange Commission v. Jarkesy, 603 U.S. 109, 122 (2024); see also Parsons v. Bedford, Breedlove & Roebson, 28 U.S. 433, 447 (1830). And even if this proceeding were to be a matter of common law, MSC did not establish why this proceeding would not fall under a public rights exception. MSC Exceptions at 14.

MSC makes an incorrect circular conclusion that because a proceeding “has an analog in the common law,” then it “does not qualify for the public rights exception and must be heard by an Article III court.” Id. MSC then presumptively concludes that ocean common carrier tariff publication is a matter of common law, without addressing the admiralty or maritime nature of this agency and its jurisdiction. Id. at 15. Nevertheless, MSC does not articulate why this agency's mission to “ensure a competitive and reliable international ocean transportation supply system that supports the U.S. economy and protects the public from unfair and deceptive practices,” would not fall under the public rights exception. MSC failed to even define what a public rights exception is

or distinguish this proceeding from the line of public rights exception cases. These failures and legal deficiencies in MSC's arguments should be scrutinized upon review.

### **III. CONCLUSION**

The ALJ correctly found that MSC violated Section 40501 when it failed publish separate D&D rates in its tariffs for 798 days. In '1 Dec. at 39–40. The ALJ's finding that MSC violated Section 40501 is supported by the whole record, and the civil penalty amount is consistent with the factual findings that are supported by probative and substantive evidence. See 5 U.S.C. § 556(d). Therefore, the Initial Decision should be affirmed in its determination that MSC violated Section 40501 798 times and should be liable for \$20,000 for each violation.

April 10, 2025

Respectfully submitted,  
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## **CERTIFICATE OF SERVICE**

I hereby certify that on this **10th day of April, 2025** a copy of the foregoing has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

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